

NOTICE OF LODGMENT
AUSTRALIAN COMPETITION TRIBUNAL

This document was lodged electronically in the AUSTRALIAN COMPETITION TRIBUNAL and has been accepted for lodgment pursuant to the Practice Direction dated 13 July 2026. Filing details follow and important additional information about these are set out below.

Lodgment and Details

Document Lodged:	Affidavit
File Number:	ACT 1 of 2026
File Title:	APPLICATION BY COLES SUPERMARKETS AUSTRALIA PTY LTD
Registry:	VICTORIA – AUSTRALIAN COMPETITION TRIBUNAL



REGISTRAR

Dated: 16/09/2026 8:48 PM

Important information

This Notice has been inserted as the first page of the document which has been accepted for electronic filing. It is now taken to be part of that document for the purposes of the proceeding in the Tribunal and contains important information for all parties to that proceeding. It must be included in the document served on each of those parties.

COMMONWEALTH OF AUSTRALIA

Competition and Consumer Act 2010

**Coles Supermarkets Australia Pty Limited Application for Review of Australian Competition
and Consumer Commission Merger Authorisation Determination (MN-01068)**

IN THE AUSTRALIAN COMPETITION TRIBUNAL

File No: ACT 1 of 2026
Re: Application for review of a determination made by the
Australian Competition and Consumer Commissioner
under subsection 51ABZE(1) of the *Competition and
Consumer Act 2010*
Applicants: Coles Supermarkets Australia Pty Limited

AFFIDAVIT

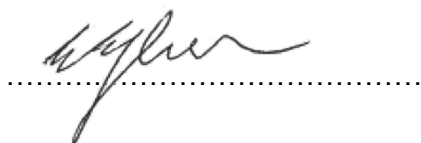
Affidavit of: Katrina Mary Close
Address: Level 34, 600 Bourke Street, Melbourne VIC 3000
Occupation: Lawyer
Date sworn or affirmed: 16 September 2026

I, Katrina Mary Close of Level 34, 600 Bourke Street, Melbourne in the State of Victoria,
Lawyer, affirm:

1. I am employed by the Australian Government Solicitor (**AGS**) and hold the position
of Deputy Chief Solicitor. I am an AGS Lawyer within the meaning of s 55I of the
Judiciary Act 1903 (Cth). AGS acts for the Australian Competition and Consumer
Commission (**ACCC**) in proceeding *ACT 1 of 2026 Application by Coles
Supermarkets Australia Pty Ltd* in the Australian Competition Tribunal. AGS also
acted for the ACCC during its Phase 2 review of the proposed acquisition by Coles

Deponent:

Made before:



Filed on behalf of the Australian Competition and Consumer
Commission

File ref: 26001070

Prepared by: Eloise Gluer
AGS lawyer within the meaning of s 55I of the *Judiciary Act
1903*

Telephone: 03 9242 1222
Lawyer's Email:

Address for Service:
The Australian Government Solicitor,
Level 34, 600 Bourke Street, Melbourne VIC 3000
Katrina.Close@ags.gov.au

Katrina.Close@ags.gov.au; Eloise.Gluer@ags.gov.au
Facsimile: 03 9242 1333

Supermarkets Australia Pty Ltd (**Coles**) of a leasehold interest in Lots 95-106 Great Eastern Highway, Somerville, Kalgoorlie for the purposes of developing a supermarket and liquor store (**Proposed Acquisition**).

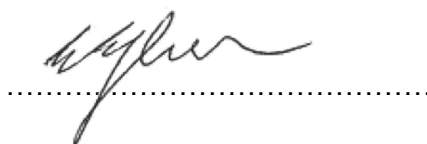
2. The information in this affidavit is based on my review of documents provided to me by the ACCC. Where I depose to matters of knowledge or belief, I believe those matters to be true.
3. Exhibited to me at the time of affirming this affidavit and marked **KMC-1** is an electronic bundle of documents, separated by virtual tab numbers.
4. On 20 February 2026, the ACCC received an email from Coles, attaching a redacted business case document. Copies of the email and attachment received on 20 February 2026 are at **Tabs 1 and 2 of KMC-1**.
5. On 4 March 2026, the ACCC received a letter from Coles regarding its second response to the 12 February notices and an unredacted business case document. Copies of the letter and business case received on 4 March 2026 are at **Tabs 3 and 4 of KMC-1**.
6. On 23 March 2026, the ACCC received a letter from Coles. A copy of the letter received on 23 March 2026 is at **Tab 5 of KMC-1**.
7. On 2 April 2026, the ACCC held a meeting with a Coles' employee. A copy of the ACCC's file note of this meeting is at **Tab 6 of KMC-1**.
8. On 14 April 2026, the ACCC received a response from Coles' legal representatives to the ACCC's Notice of Competition Concerns dated 5 March 2026, including an expert report from Warwick Davis of Frontier Economics. A copy of that expert report is at **Tab 7 of KMC-1**.

Deponent:



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Made before:



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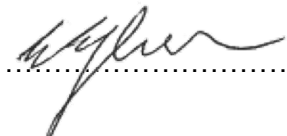
9. On 26 May 2026, the ACCC sent a letter to Coles' legal representatives attaching a spreadsheet. A copy of the letter and attachment sent on 26 May 2026 is at **Tabs 8 and 9 of KMC-1**.

Affirmed by the deponent at Melbourne
in the State of Victoria on 16 September
2026.


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Before me:

Signature of witness:


.....

Name of witness:

Eloise Gluer

Qualification of witness:

an AGS Lawyer within the meaning of
s 55I of the *Judiciary Act 1903* (Cth)

This affidavit was signed by the deponent and authorised affidavit taker by electronic means. This affidavit was signed in front of the authorised affidavit taker by means of audio visual link.

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Consumer Act 2010*
Applicants: Coles Supermarkets Australia Pty Limited

CERTIFICATE OF EXHIBIT KMC-1

I certify that the document to which this certificate is attached is the exhibit KMC-1 referred to
in the affidavit of Katrina Mary Close made on 16 September 2026 before me:



.....
Signature

AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*